



File No.: EXP202211497

RESOLUTION No.: R/00098/2023

Considering the complaint filed on September 16, 2022, before this Agency by A.A.A. (hereinafter, the complainant) against B.B.B. (hereinafter, the respondent), for not having duly addressed their right to object.

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: The complainant exercised the right to object against the respondent, and their request, as stated by the complainant, did not receive the legally established response. They provide various documentation related to the complaint filed with this Agency and regarding the exercise of the right exercised.

SECOND: In accordance with Article 65.4 of the LOPDGDD, which has provided a mechanism prior to the admission of complaints filed before the AEPD, consisting of transferring them to the Data Protection Officers designated by the data controllers or processors, for the purposes provided for in Article 37 of the aforementioned regulation, or to them when they have not been designated, the complaint was forwarded to the entity being complained against for them to analyze it and respond to the complainant and this Agency within one month.

A written response from the respondent was received by this Agency. However, it is noted that in the response to the transfer of the complaint, the exercise of the right to object raised by the complainant, Article 21 of the General Data Protection Regulation, was not addressed.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the complainant's claims were satisfied. Consequently, on December 16, 2022, for the purposes provided for in Article 64.2 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing and informed the parties that the maximum period to resolve the present procedure, which is understood to have commenced with said admission agreement, will be six months.

The aforementioned agreement granted the respondent the opportunity to be heard, so that within ten working days they could present any allegations they deemed appropriate. The respondent made allegations to justify that they reasonably deny the right to object and communicated this to the complainant.

Namely:

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“...By this letter, we acknowledge receipt of your request to exercise the right to object and, attending to your request and after conducting the relevant consultations, we inform you that it is not appropriate to process said request for the following reason:

- There are compelling legitimate grounds that override your rights, interests, and freedoms, consisting of the legal defense of the attorney who subscribes against your judicial claim for professional malpractice.
- The processing is necessary for the formulation and exercise of the legal defense against the judicial claim you have made against this attorney...”

FOURTH: The allegations presented by the respondent have been examined and are subject to transfer to the complainant, so that, within fifteen working days, they can formulate any allegations they consider appropriate.

The complainant presents allegations in which, in summary, they state that their rights have been

ignored, that the respondent has explained the reasons for not addressing the right almost a year after requesting it and after making the complaint to the Agency.

They assert that it is untrue that they communicated the right verbally and insist that their data is being transferred to third parties without their consent.

## LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for the Protection of Data is competent to resolve this matter, in accordance with the provisions of paragraph 2 of Article 56 in relation to paragraph 1 f) of Article 57, both of the Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter, GDPR); and in Article 47 of the LOPDGDD.

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for the Protection of Data is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In the case that they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, prior to the admission of the complaint that gives rise to this procedure, the same was forwarded to the responsible entity for them to analyze it, respond to this Agency within one month, and demonstrate that they have provided the complainant with the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

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The aforementioned admission agreement determines the initiation of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated by Article 64.1 of the LOPDGDD, according to which:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. Once this period has elapsed, the interested party may consider their complaint accepted.”

The clarification of administrative responsibilities within the framework of a sanctioning procedure is not deemed appropriate, given that its exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with the present procedure, the guarantees and rights of the complainant are duly restored.

THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the interested party, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the interested party, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the controller.

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The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language. Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be considered granted if the data controller provides remote access to the data, thus fulfilling the request (although the interested party may request the information referred to in the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive on more than one occasion during a period of six months, unless there is a legitimate reason for it.

On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

FOURTH: Article 21 of the GDPR, relating to the right to object, establishes the following:

- "1. The interested party shall have the right to object at any time, on grounds relating to their particular situation, to the processing of personal data concerning them based on the provisions of Article 6, paragraph 1, letters e) or f), including profiling based on those provisions. The data controller shall cease to process the personal data unless it demonstrates compelling legitimate grounds for the processing which override the interests, rights, and freedoms of the interested party, or for the establishment, exercise, or defense of legal claims.
2. When the processing of personal data is for the purpose of direct marketing, the interested party shall have the right to object at any time to the processing of personal data concerning them, including profiling to the extent that it is related to such marketing.
3. When the interested party objects to processing for direct marketing purposes, the personal data shall no longer be processed for such purposes.
4. At the latest at the time of the first communication with the interested party, the rights indicated in paragraphs 1 and 2 shall be explicitly mentioned to the interested party and shall be presented clearly and separately from any other information.
5. In the context of the use of information society services, and notwithstanding the provisions of Directive 2002/58/EC, the interested party may exercise their right to object by automated means that apply technical specifications.
6. When personal data are processed for scientific or historical research purposes or for statistical purposes in accordance with Article 89, paragraph 1, the

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The interested party shall have the right, for reasons related to their particular situation, to oppose the processing of personal data concerning them, unless it is necessary for the performance of a task carried out for reasons of public interest.

FIFTH: In the case analyzed here, the claimant exercised their right to oppose the processing of their personal data, arguing that it was being processed without their consent and transferred to third parties.

The respondent claims that it cannot comply with the right since, having received a complaint against them for professional malpractice, it needs to have the data to defend itself and responds during the allegations period to the claimant explaining its refusal for legitimate reasons.

The documentation provided refers to the existence of a complaint for malpractice, as stated in Recital 4 of the GDPR: "The processing of personal data must be designed to serve humanity. The right to the protection of personal data is not an absolute right, but must be considered in relation to its function in society and maintain a balance with other fundamental rights, in accordance with the principle of proportionality. This Regulation respects all fundamental rights and observes the freedoms and principles recognized in the Charter as enshrined in the Treaties, in particular the respect for private and family life, home and communications, the protection of personal data, freedom of thought, conscience and religion, freedom of expression and information, freedom to conduct a business, the right to effective judicial protection and to a fair trial, and cultural, religious and linguistic diversity." Article 24 of the Spanish Constitution enshrines the right to effective judicial protection in the following terms:

"1. Everyone has the right to obtain effective protection from judges and courts in the exercise of their rights and legitimate interests, without any case leading to a state of defenselessness.

2. Likewise, everyone has the right to the ordinary judge predetermined by law, to defense and to the assistance of a lawyer, to be informed of the accusation made against them, to a public trial without undue delay and with all guarantees, to use the relevant means of evidence for their defense, not to testify against themselves, not to confess guilt, and to the presumption of innocence.

The law shall regulate the cases in which, by reason of kinship or professional secrecy, there shall be no obligation to testify about allegedly criminal facts."

Therefore, the right to effective judicial protection entails the right to defense and assistance of a lawyer, which constitutes one of the limits of the right to data protection and implies its prevalence over the constitutional right to data protection, as declared by the Constitutional Court in its Judgment 186/2000, of July 10.

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Finally, it should be added that the transfer of data referred to by the claimant has not been proven beyond that which occurs with the respondent party subject to this complaint.

Based on the above, considering that this procedure aims to ensure that the guarantees and rights of the affected parties are duly restored, and given that the respondent has reasonably but untimely denied this claim, this complaint is upheld for formal reasons.

Having seen the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD for formal reasons, the complaint filed by A.A.A. against the entity B.B.B.

However, the issuance of a new certification by said entity is not warranted, as the response was issued untimely, and no additional actions are required from the responsible party.

SECOND: TO NOTIFY this resolution to A.A.A. and to B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National

Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.  
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